

**INSTRUCTIONS FOR FLORIDA FAMILY LAW RULES OF PROCEDURE
FORM 12.932
CERTIFICATE OF COMPLIANCE WITH MANDATORY DISCLOSURE
(06/25)**

When should this form be used?

Mandatory disclosure requires each **party** in a family matter to provide the other party with certain financial information and documents. Within 45 days of **service** of the initial petition or supplemental petition for modification on the **respondent**, these documents must be served on the other party. The mandatory disclosure rule applies to all original and **supplemental** cases, except simplified dissolution of marriage cases and cases where the respondent is served by **constructive service** and does not answer. You should use this form to notify the court and the other party that you have complied with the mandatory disclosure rule.

Each party must provide the other party with the documents listed in section 2 of this form if the relief being sought is permanent regardless of whether it is an initial or supplemental proceeding. ONLY THE COMPLETED FORM IS FILED WITH THE COURT. NO OTHER DOCUMENTS SHALL BE FILED IN THE COURT FILE WITHOUT A PRIOR COURT ORDER, EXCEPT FOR THE FINANCIAL AFFIDAVIT, UNLESS THE PARTIES HAVE EXECUTED AND FILED FLORIDA FAMILY LAW FORM 12.902(k). THE DOCUMENTS LISTED ON THIS FORM ARE TO BE GIVEN TO THE OTHER PARTY. If your individual gross annual income is under \$50,000, you should complete the **Family Law Financial Affidavit (Short Form)**, Florida Family Law Rules of Procedure Form 12.902(b). If your individual gross annual income is \$50,000 or more, you should complete the **Family Law Financial Affidavit (Long Form)**, Florida Family Law Rules of Procedure Form 12.902(c).

In addition, there are separate mandatory disclosure requirements that apply to **temporary financial relief hearings**, which are listed in section 1 of this form. The party seeking temporary financial relief must serve these documents on the other party with the notice of temporary financial relief hearing. The responding party must serve the required documents on the party seeking temporary relief. Any documents that have already been served under the requirements for temporary or initial proceedings do not need to be reserved again in the same proceeding. If a supplemental petition is filed, seeking modification, then the mandatory disclosure requirements begin again.

You must state with specificity the documents that you are producing to the other party. References to account numbers and personal identifying information are governed by Florida Rule of General Practice and Judicial Administration 2.425, which you should review prior to completing this form.

This form should be typed or printed in black ink. After completing this form, you should **file** this document with the **clerk of the circuit court** in the county where your case is filed and keep a copy for your records. A copy of this form must be served on any other party in your case. **Service** must be in accordance with Florida Rule of General Practice and Judicial Administration 2.516.

What should I do next?

After you have provided the other party all of the financial information and documents and have filed this form certifying that you have complied with this rule, you are under a continuing duty to promptly give the other party any information or documents that change your financial status or that make the information already provided inaccurate. Refer to the instructions regarding the petition in your case to determine how you should proceed after filing this form.

Where can I look for more information?

Before proceeding, you should read “General Information for Self-Represented Litigants” found at the beginning of these forms. The words that are in **bold and underlined** in these instructions are defined there. For further information, see Florida Family Law Rule of Procedure 12.285.

IMPORTANT INFORMATION REGARDING E-FILING

The Florida Rules of General Practice and Judicial Administration require that all petitions, pleadings, and documents be filed electronically except in certain circumstances. **Self-represented litigants may file petitions or other pleadings or documents electronically; however, they are not required to do so.** If you choose to file your pleadings or other documents electronically, you must do so in accordance with Florida Rule of General Practice and Judicial Administration 2.525, and you must follow the procedures of the judicial circuit in which you file. The rules and procedures should be carefully read and followed.

IMPORTANT INFORMATION REGARDING E-SERVICE ELECTION

After the initial service of process of the petition or supplemental petition by the Sheriff or certified process server, the Florida Rules of General Practice and Judicial Administration require that all documents required or permitted to be served on the other party must be served by electronic mail (e-mail) except in certain circumstances. **You must strictly comply with the format requirements set forth in the Florida Rules of General Practice and Judicial Administration.** If you elect to participate in electronic service, which means serving or receiving pleadings by electronic mail (e-mail), or through the Florida Courts E-Filing Portal, you must review Florida Rule of General Practice and Judicial Administration 2.516. You may find this rule at www.flcourts.org through the link to the Rules of General Practice and Judicial Administration provided under either Family Law Forms: Getting Started, or Rules of Court in the A-Z Topical Index.

SELF-REPRESENTED LITIGANTS MAY SERVE DOCUMENTS BY E-MAIL; HOWEVER, THEY ARE NOT REQUIRED TO DO SO. If a self-represented litigant elects to serve and receive documents by email, the procedures must always be followed once the initial election is made.

To serve and receive documents by e-mail, you must designate your e-mail addresses by using the Designation of Current Mailing and E-mail Address, Florida Supreme Court Approved Family Law Form 12.915, and you must provide your e-mail address on each form on which your signature appears. Please **CAREFULLY** read the rules and instructions for: **Certificate of Service (General), Florida Supreme Court Approved Family Law Form 12.914; Designation of Current Mailing and E-mail Address**, Florida Supreme Court Approved Family Law Form 12.915; and Florida Rule of General Practice and Judicial Administration 2.516.

Special notes . . .

You may provide copies of required documents; however, the originals must be produced for inspection if the other party requests to see them.

Although the financial affidavits are based on individual gross income, either party may ask the other party to complete the **Family Law Financial Affidavit (Long Form)**, Florida Family Law Rules of Procedure Form 12.902(c), by serving the appropriate interrogatory form. (See **Standard Family Law Interrogatories**, Florida Family Law Rules of Procedure Form 12.930(b) (original proceedings) or (c) (modification proceedings)).

Any portion of the mandatory disclosure rule may be modified by order of the **court** or agreement of the parties. Therefore, you and the other party may agree that you will not require each other to produce the documents required under the mandatory disclosure rule. This exception does **not** apply to the **Financial Affidavit**, Family Law Rules of Procedure Form 12.902(b) or (c), which is required in all cases and cannot be waived.

Remember, a person who is NOT an attorney is called a nonlawyer. If a nonlawyer helps you fill out these forms, that person must give you a copy of a **Disclosure from Nonlawyer**, Florida Family Law Rules of Procedure Form 12.900(a), before he or she helps you. A nonlawyer helping you fill out these forms also **must** put his or her name, address, and telephone number on the bottom of the last page of every form he or she helps you complete.

IN THE CIRCUIT COURT OF THE _____ JUDICIAL CIRCUIT,
IN AND FOR _____ COUNTY, FLORIDA

Case No.: _____

Division: _____

Petitioner,

and

Respondent.

CERTIFICATE OF COMPLIANCE WITH MANDATORY DISCLOSURE

**ONLY THE COMPLETED FORM IS FILED WITH THE COURT.
THE DOCUMENTS LISTED BELOW ARE TO BE GIVEN TO THE OTHER
PARTY. NO DOCUMENTS SHALL BE FILED IN THE COURT FILE WITHOUT
A PRIOR COURT ORDER, EXCEPT THE FINANCIAL AFFIDAVIT, UNLESS
THE PARTIES HAVE EXECUTED AND FILED FLORIDA FAMILY LAW FORM
12.902(k).**

I, {full legal name} _____, certify that I have complied
with the mandatory disclosure required by Florida Family Law Rule 12.285 as follows:

1. FOR TEMPORARY FINANCIAL RELIEF, ONLY:

The date the following documents were served: _____.

[Check **all** that apply. State with specificity the documents being produced; if sufficient space is not
provided, you may attach additional papers with this form and refer to them in the space provided.]

- a. ____ Financial Affidavit
____ Florida Family Law Rules of Procedure Form 12.902(b) (short form)
____ Florida Family Law Rules of Procedure Form 12.902(c) (long form)
- b. ____ All complete federal and state personal income tax, gift tax, and foreign tax returns for
the past 3 years; including all attachments, including IRS forms W-2, 1099, and K-1, and
all accompanying schedules and worksheets comprising the entire tax return; **or**
____ Transcript of tax return as provided by IRS form 4506-T; **or**
____ IRS forms W-2, 1099, and K-1 for the past year because the income tax return for
the past year has not been prepared; and for any of the prior 2 years beyond the
past year if tax returns for any of those years have not been filed.
- c. ____ Pay stubs or other evidence of earned income for the 6 months before the compliance

with the disclosure requirements for temporary relief. The following are produced:

2. FOR INITIAL, SUPPLEMENTAL, AND PERMANENT FINANCIAL RELIEF:

The date the following documents were served: _____.

[Check **all** that apply. State with specificity the documents being produced; if sufficient space is not provided, you may attach additional papers with this form and refer to them in the space provided.]

a. _____ Financial Affidavit

_____ Florida Family Law Rules of Procedure Form 12.902(b) (short form)

_____ Florida Family Law Rules of Procedure Form 12.902(c) (long form)

b. _____ All complete federal and state personal income tax, gift tax, and foreign tax returns, for the past 3 years; including all attachments, including IRS forms W-2, 1099, and K-1, and all accompanying schedules and worksheets comprising the entire tax return;

_____ Transcript of the tax return as provided by IRS form 4506-T; **or**

_____ IRS forms W-2, 1099, and K-1 for the past year because the income tax return for the past year has not been prepared; and for any of the prior 2 years beyond the past year if tax returns for any of those years have not been filed.

c. _____ Pay stubs or other evidence of earned income for the 6 months before the compliance with these disclosure requirements for initial or supplemental proceedings. The following are produced: _____

d. _____ A statement identifying the source and amount of all income for the 6 months before the compliance with these disclosure requirements for initial or supplemental proceedings, if not reflected on the pay stubs produced. The following are produced: _____

e. _____ All loan applications, financial statements, credit reports, or any other form of financial disclosure, including financial aid forms, prepared for any purpose or used for any purpose within the 24 months preceding the compliance with these disclosure requirements for initial or supplemental proceedings. The following are produced: _____

f. _____ All deeds to real estate in which I presently own or owned an interest within the past 3 years. All promissory notes or other documents evidencing money owed to me or my spouse at any time within the last 24 months. All leases, whether in my name individually, in my name jointly with any other person or entity, in my name as trustee or guardian for a party or a minor or adult dependent child of both parties, or in someone else's name on my behalf wherein either party (A) is receiving or has received payments at any time within the last 3 years, or (B) owns or owned an interest. The

following are produced: _____

_____.

- g. _____ All periodic statements for the last 12 months for all checking accounts and for the last year for all savings accounts, money market funds, certificates of deposit, etc., whether in my name individually, in my name jointly with any other person or entity, in my name as trustee or guardian for a party or a minor or adult dependent child of both parties, or in someone else's name on my behalf; and for all accounts that have check-writing privileges, copies of canceled checks and registers, whether written or electronically maintained. The following are produced: _____

_____.

- h. _____ All brokerage account statements for the last 12 months, in either party's name individually or jointly with any person or entity, or as a trustee or guardian for a party or a minor or adult dependent child of both parties, or in someone else's name on my behalf; and for all accounts that have check-writing privileges, copies of canceled checks and registers, whether written or electronically maintained. The following are produced: _____

_____.

- i. _____ Most recent statement and statements for the past 12 months for any pension, profit sharing, deferred compensation, or retirement plan (for example, IRA, 401(k), 403(b), SEP, KEOGH, etc.) and summary plan description for any such plan in which I am a participant or an alternate payee receiving payments. The following are produced: _____

_____.

- j. _____ Most recent statement and statements for the past 12 months for any virtual currency transactions in which either party participated within the last 12 months or holds an interest in, either individually, jointly with any other person or entity, as trustee or guardian for a party or minor or adult dependent child of both parties, or in someone else's name on my behalf, and a listing of all current holdings of virtual currency. The following are produced: _____

_____.

- k. _____ The declaration page, the last periodic statement, statements for the past 12 months and the certificate for any group insurance for all life insurance policies insuring my life or the life of my spouse. The following are produced: _____

_____.

- l. ____ All health and dental insurance cards covering either me or my spouse and/or our dependent child(ren). The following are produced: _____

_____.
- m. ____ Corporate, partnership, and trust tax returns for the last 3 tax years, in which I have an ownership or interest. The following are produced: _____

_____.
- n. ____ All credit card and charge account statements and other records showing my (our) indebtedness as of the date of the filing of this action and for the prior 24 months preceding compliance with these disclosure requirements for initial or supplemental proceedings. All promissory notes on which I presently owe or owned within the past 24 months, whether paid or not. All lease agreements I presently owe, either in my name individually, jointly with any other person or entity, in my name as trustee or guardian for a party or a minor or adult dependent child of both parties, or in someone else's name on my behalf. The following are produced: _____

_____.
- o. ____ All premarital and marital agreements between the parties to this case, and all affidavits and declaration of non-paternity or judgments of disestablishment of paternity for any minor or dependent children born or conceived during the marriage. The following are produced: _____

_____.
- p. ____ If a modification proceeding, all written agreements entered into between the parties at any time since the order to be modified was entered. The following are produced: _____

_____.
- q. ____ All documents relating to claims for an unequal distribution of marital property, enhancement or appreciation in nonmarital property, or nonmarital status of an asset or debt. The following are produced: _____

_____.
- r. ____ Any court order directing that I pay or receive spousal support (alimony) or child support. The following are produced: _____

_____.

I certify that a copy of this document was [check all used]: () e-mailed () mailed () hand delivered to the person(s) listed below on {date}_____.

Other party or his/her attorney:

Name: _____

Address: _____

City, State, Zip: _____

Telephone Number: _____

E-mail Address(es): _____

Under penalties of perjury, I swear or affirm that the above disclosure and statements made in it are complete, accurate, and in compliance with the requirements of Rule 12.285, Fla. Fam. L.R.P.

Dated: _____

Signature of Party

Printed Name: _____

Address: _____

City, State, Zip: _____

Telephone Number: _____

E-mail Address(es): _____

IF A NONLAWYER HELPED YOU FILL OUT THIS FORM, HE/SHE MUST FILL IN THE BLANKS BELOW:

[fill in **all** blanks] This form was prepared for the: *{choose only one}* _____ Petitioner _____ Respondent

This form was completed with the assistance of:

{name of individual} _____,

{name of business} _____,

{address} _____,

{city} _____, *{state}* _____, *{zip code}* _____, *{telephone number}* _____.